

Sonsay S/O Shri Deriha Aged About 60 ... vs Kamalraj on 16 April, 2024

Author: Avanindra Kumar Singh

Bench: Avanindra Kumar Singh

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IN THE HIGH COURT OF MADHYA PRADESH
AT J A B A L P U R
BEFORE
HON'BLE SHRI JUSTICE AVANINDRA KUMAR SINGH
ON THE 16th OF APRIL, 2024

SECOND APPEAL No. 108 of 2023

BETWEEN: -

1. SONSAY S/O SHRI DERIHA AGED
ABOUT 60 YEARS (DIED) THROUGH LRS

BESAHU SINGH PARASTE S/O LATE
SHRI SONSAY, AGED ABOUT 44 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BHAGHARRA POLICE
STATION RAJENDRAGRAM DISTRICT
ANUPPUR (MADHYA PRADESH)

2. RAMBAHOR SINGH S/O LATE SHRI
SONSAY, AGED ABOUT 35 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BHAGHARRA, POLICE
STATION RAJENDRAGRAM, DISTRICT
ANUPPUR (MADHYA PRADESH)

3. SHANKAR SINGH S/O LATE SHRI
SONSAY, AGED ABOUT 30 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BHAGHARRA, POLICE
STATION RAJENDRAGRAM, DISTRICT
ANUPPUR (MADHYA PRADESH)

4. MUNNI D/O LATE SHRI SONSAY,
AGED ABOUT 44 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BHAGHARRA, POLICE STATION

RAJENDRAGRAM, DISTRICT ANUPPUR
(MADHYA PRADESH)

5. SONBAHADUR S/O SHRI MARHU,
AGED ABOUT 45 YEARS, R/O VILLAGE
BHAGHARRA, POLICE STATION
RAJENDRAGRAM, DISTRICT ANUPPUR

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(MADHYA PRADESH)

6. ANGAD (DIED) S/O SHRI CHAITU
SINGH AGED ABOUT 59 YEARS
THROUGH LRS
BHARAT SINGH S/O LATE SHRI ANGAD
SINGH, AGED ABOUT 44 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BHAGHARRA, POLICE
STATION RAJENDRAGRAM, DISTRICT
ANUPPUR (MADHYA PRADESH)

7. PREM SINGH S/O LATE SHRI ANGAD
SINGH, AGED ABOUT 38 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BHAGHARRA, POLICE
STATION RAJENDRAGRAM, DISTRICT
ANUPPUR (MADHYA PRADESH)

8. DILIP SINGH S/O LATE SHRI ANGAD
SINGH, AGED ABOUT 35 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BHAGHARRA, POLICE
STATION RAJENDRAGRAM, DISTRICT
ANUPPUR (MADHYA PRADESH)

9. SADKAHIN W/O LATE SHRI ANGAD
SINGH, AGED ABOUT 60 YEARS,
OCCUPATION: HOUSEWIFE R/O
VILLAGE BHAGHARRA, POLICE
STATION RAJENDRAGRAM, DISTRICT
ANUPPUR (MADHYA PRADESH)

10. RUPA SINGH S/O BEER SINGH,
AGED ABOUT 50 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

11. JAY SINGH S/O BEER SINGH, AGED
ABOUT 47 YEARS, OCCUPATION:

AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

12. SHIVLAL S/O BEER SINGH, AGED
ABOUT 45 YEARS, OCCUPATION:
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AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

13. RAM SINGH S/O SHRI RAMCAHRAN,
AGED ABOUT 45 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

14. MST. UJIYRIYA W/O LATE SHRI
SUDHODHAN, AGED ABOUT 40 YEARS,
R/O VILLAGE BAGHARRA, POLICE
RAJENDRAGRAM DISTRICT ANUPPUR
(MADHYA PRADESH)

15. NAROTTAM S/O LATE SHRI
SUDHODHAN, AGED ABOUT 22 YEARS,
R/O VILLAGE BAGHARRA, POLICE
RAJENDRAGRAM DISTRICT ANUPPUR
(MADHYA PRADESH)

16. PURAN S/O LATE SHRI SUDHODHAN,
AGED ABOUT 20 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

17. JAY SINGH S/O SHRI KUNVAR
SINGH, AGED ABOUT 55 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BAGHARRA, POLICE
RAJENDRAGRAM DISTRICT ANUPPUR
(MADHYA PRADESH)

18. CHHOTE SINGH S/O SHRI KUNVAR
SINGH, AGED ABOUT 50 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BAGHARRA, POLICE
RAJENDRAGRAM DISTRICT ANUPPUR

(MADHYA PRADESH)

19. SHUKLU S/O SHRI KUNVAR SINGH,
AGED ABOUT 55 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA

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PRADESH)

20. MANOHAR S/O SHRI KUNVAR
SINGH, AGED ABOUT 55 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BAGHARRA, POLICE
RAJENDRAGRAM DISTRICT ANUPPUR
(MADHYA PRADESH)

21. DHANNU @ DHAN SINGH S/O SHRI
KUNVAR SINGH, AGED ABOUT 55
YEARS, OCCUPATION: AGRICULTURIST
R/O VILLAGE BAGHARRA, POLICE
RAJENDRAGRAM DISTRICT ANUPPUR
(MADHYA PRADESH)

22. GULJAR S/O SHRI JANEWA SINGH,
AGED ABOUT 40 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

23. GULAB S/O SHRI JANEWA SINGH,
AGED ABOUT 30 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

24. MST. RAMVATI W/O LATE SHRI
SULTAN SINGH, AGED ABOUT 30 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BAGHARRA, POLICE
RAJENDRAGRAM DISTRICT ANUPPUR
(MADHYA PRADESH)

25. MAIKU S/O LATE SHRI SULTAN
SINGH, AGED ABOUT 30 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BAGHARRA, POLICE
RAJENDRAGRAM DISTRICT ANUPPUR
(MADHYA PRADESH)

26. MILAN WD/O LATE SHRI SULTAN
SINGH, AGED ABOUT 28 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BAGHARRA, POLICE
RAJENDRAGRAM DISTRICT ANUPPUR
(MADHYA PRADESH)

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27. RAJKUMAR S/O LATE SHRI SULTAN
SINGH, AGED ABOUT 25 YEARS,
OCCUPATION: AGRICULTURIST R/O
VILLAGE BAGHARRA, POLICE
RAJENDRAGRAM DISTRICT ANUPPUR
(MADHYA PRADESH)

28. SMT. GANESHIYA BAI WD/O LATE
SHRI DHANNU SINGH, AGED ABOUT 50
YEARS, OCCUPATION: AGRICULTURIST
R/O VILLAGE BAGHARRA, POLICE
RAJENDRAGRAM DISTRICT ANUPPUR
(MADHYA PRADESH)

29. AKASH S/O SHRI DHANNU GOND,
AGED ABOUT 30 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

30. BALDAU S/O SHRI DHANNU GOND,
AGED ABOUT 25 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

31. DHANSAY S/O SHRI CHAITU, AGED
ABOUT 53 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

32. CHHOTU S/O SHRI CHAITU, AGED
ABOUT 50 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

33. BHAGABAI @ BHANABAI @
MANABAI WD/O LATE SHRI MANGALU,
AGED ABOUT 40 YEARS, OCCUPATION:
AGRICULTURIST R/O VILLAGE
BAGHARRA, POLICE RAJENDRAGRAM
DISTRICT ANUPPUR (MADHYA
PRADESH)

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..... APPELLANTS/DEFENDANTS

(SHRI SANJEEV KUMAR SINGH - ADVOCATE FOR THE
APPELLANTS/DEFENDANTS)
AND

1. KAMALRAJ S/O LATE SHRI SONWA,
AGED ABOUT 60 YEARS, R/O VILLAGE
SHIVRICHANDAS POLICE STATION
RAJNEDRAGRAM DISTRICT ANUPPUR
(MADHYA PRADESH)

2. BABLIBAI D/O DHANNU SINGH,
AGED ABOUT 23 YEARS, R/O VILLAGE
BAGHARRA, POLICE STATION
RAJENDRAGRAM, DISTRICT ANUPPUR
(MADHYA PRADESH)

3. RAJNI WD/O LATE SHRI BEER
SINGH, AGED ABOUT 70 YEARS, R/O
VILLAGE BAGHARRA, POLICE
STATION RAJENDRAGRAM, DISTRICT
ANUPPUR (MADHYA PRADESH)

4. SMT. PUSIYA @ KUSIYA BAI WD/O
JANOHAR SINGH, AGED ABOUT 60
YEARS, R/O VILLAGE BAGHARRA,
POLICE STATION RAJENDRAGRAM,
DISTRICT ANUPPUR (MADHYA
PRADESH)

5. RADHA BAI D/O LATE SHRI
SANTOSH SINGH, AGED ABOUT 23
YEARS, R/O VILLAGE BAGHARRA,
POLICE STATION RAJENDRAGRAM,
DISTRICT ANUPPUR (MADHYA
PRADESH)

6. PREMVATI D/O SHRI SANTOSH
SINGH, AGED ABOUT 21 YEARS, R/O
VILLAGE BAGHARRA, POLICE

STATION RAJENDRAGRAM, DISTRICT
ANUPPUR (MADHYA PRADESH)

7. JAIMUN BAI W/O LATE SHRI
SANTOSH SINGH, AGED ABOUT 43
YEARS, R/O VILLAGE BAGHARRA,

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POLICE STATION RAJENDRAGRAM,
DISTRICT ANUPPUR (MADHYA
PRADESH)

8. CHAMRU S/O SHRI LUTVA SINGH,
AGED ABOUT 60 YEARS, R/O VILLAGE
BAGHARRA, POLICE STATION
RAJENDRAGRAM, DISTRICT ANUPPUR
(MADHYA PRADESH)

9. BABULAL S/O SHRI HIRVA SINGH,
AGED ABOUT 65 YEARS, R/O VILLAGE
BAGHARRA, POLICE STATION
RAJENDRAGRAM, DISTRICT ANUPPUR
(MADHYA PRADESH)

10. CHHOTE SINGH S/O SHRI HIRVA
SINGH, AGED ABOUT 60 YEARS, R/O
VILLAGE BAGHARRA, POLICE STATION
RAJENDRAGRAM, DISTRICT ANUPPUR
(MADHYA PRADESH)

11. SMT. KOLUHAYIN WD/O LATE SHRI
KOLHU SINGH, AGED ABOUT 75 YEARS,
R/O VILLAGE BARBASPUR, POST
OFFICE, KARONDI, DISTRICT ANUPPUR
(MADHYA PRADESH)

12. SANU SINGH S/O SHRI HEERALAL,
AGED ABOUT 40 YEARS, R/O VILLAGE
SHIVARICHANDAS, POLICE STATION
RAJENDRAGRAM, DISTRICT ANUPPUR
(MADHYA PRADESH)

13. BHANU SINGH S/O SHRI HEEALAL
SINGH, AGED ABOUT 35 YEARS, R/O
VILLAGE BAGHARRA, POLICE STATION
RAJENDRAGRAM, DISTRICT ANUPPUR
(MADHYA PRADESH)

14. STATE OF MADHYA PRADESH
THROUGH COLLECTOR ANUPPUR
DISTRICT ANUPPUR (MADHYA
PRADESH)

.....RESPONDENTS/PLAINTIFFS

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(SHRI RAVINDRA RAJPUT - PANEL LAWYER FOR THE
RESPONDENT NO. 14/STATE AND NONE FOR OTHER
RESPONDENTS)

Reserved on : 29.01.2024

Pronounced on : 16.04.2024

This appeal having been heard and reserved for order,
coming on for pronouncement this day, this court passed the
following:

JUDGMENT

1. This second appeal is pending for orders on admission.
2. Learned counsel for appellant Shri Sanjeev Kumar Singh has been heard on question of admission on 29.01.2024.
3. It was argued that suit of the plaintiffs was decreed by the trial Court and appellate Court dismissed the appeal of the appellants/defendant ignoring the fact that plaintiff/respondent was not son of Dharampatani of deceased Sonsay and in ignorance of section 16 of Hindu Succession Act, 1956 decree has been granted to plaintiff/respondent. Even otherwise, Shri Sonsay had given some landed property to son of his second wife in other village, therefore, they cannot seek the share in the suit property which was the subject matter in the trial Court.
4. On perusal of record, it is seen that learned Civil Judge, Class I Rajendragaoan, Distt. Anuppur M.P. in Civil Suit No. 63-A/13 Kamalraj and ors. vs. Sonsay and ors. by judgment and decree dated 23.03.2018 decreed the suit of the plaintiffs regarding suit land in Gram Bagharra, Patwari Halka, Haveli Circle, Bhejree, Tehsil Pusprajgarh, Distt. Annuppur for various Khasra

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numbers totalling 27 Kita total area 61.789, hectare with the declaration that plaintiffs and defendants are entitled for partition in which Kamalraj - plaintiff son of Sunva is entitled for 1/5th share regarding land in village and the learned trial Court declared the shares of the other parties as per paras 40 (), 40 (), 40 (), 40 (), 40 (), 40 (), 40 (), 40 () and 40 () and also directed that after partition, defendants not to interfere in the share of the plaintiffs and further appointed SDO of the Tehsil, Rajendragaoan, Distt. Anuppur, to partition the suit property in terms of decree.

5. Aggrieved by this decree Sonsay and 26 ors. filed R.C.A. No. 16- A/2018, which was dismissed by the learned District Judge, Anuppur by judgment and decree dated 12.10.2022. Second appeal has

been filed on the ground that plaintiffs are the sons of second wife of Sunva. Decree has wrongly been granted to the plaintiffs because they are issues of second wife of Titru Singh who in his life time partitioned the land to Sahru, Gautam and Sunwa his sons. The disputed land was vested in the share of defendants and was partitioned somewhere 60 or 70 years before on which their father Marhu and Bhageli were cultivating the land and, thereafter, defendants are cultivating the land. It was also argued that plaintiffs fraudulently obtained a partition order from Tehsildar, but it was set aside by the order of SDO.

6. It was also argued on behalf of the appellants that according to Section 60 of Hindu Succession Act, 1956, the children born out of illicit relation with a woman are not entitled to any right in ancestral property, therefore, both the Courts committed grave mistake and decree be set aside.

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7. This Court has heard the learned counsel for the appellants. It is seen that trial Court has dealt each and every aspect of the dispute. There is no reliable evidence on the record of the trial Court that earlier there was some partition. Even assuming for a second that mother of Kamalraj i.e. Roshni Bai wife of Sunva was not legal wife of Titru Singh, but there is no reliable evidence of earlier partition as argued, in fact, appellants are even not sure in which year partition took place. They have just pleaded that partition took place about 60 to 70 years ago. Partition may be presumed in certain conditions by evidence and conduct of the parties, but in this case no such evidence is there to presume that earlier there was some partition, therefore, partition as ordered by the trial Court is not bad in law. In fact, there is nothing in Section 16 of Hindu Succession Act which bars giving property to children of second wife. In fact, the Hindu Marriage Act, 1955 Section 16 (3) is as below:-

16. Legitimacy of children of void and voidable marriages.--

(1) Notwithstanding that marriage is null and void under section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act. (2) Where a decree of nullity is granted in respect of a voidable marriage under section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity.

(3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under section 12, any rights in or to the property of any

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person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents."

8. Hon'ble the Supreme Court in Civil Appeal No. 2844/2011 Revanasiddappa and anr. vs. Mallikarjun and ors., judgment dated 01.09.2023 (Three Judge Bench) has also reiterated the same position. In this judgment Hon'ble the Supreme Court recognized the rights of children born out of invalid marriages in their parents' share in Hindu joint family property. It held that children born out of void/voidable marriages are entitled to inherit a share in the property of their deceased parents which would have been allotted to them on a notional partition of the Hindu coparcenary property. However, such children are not entitled to the properties of any coparcener other than their parents. Therefore, in the facts and circumstances of the case, the learned trial Court has correctly held as per law in the facts and circumstances of the pleadings of the plaintiffs, written statements and evidence of both the parties, if there is no evidence otherwise, the Courts would lean in favour of valid marriage and partition as per law. In fact, it is not proved that second marriage of Titru Singh was before coming of Hindu Marriage Act, 1955 or later, on the bar under Section 16 (3) of Hindu Marriage Act would apply only after coming into force of Hindu Marriage Act 1955. In fact, there is no pinpointing pleading or evidence by both the parties to hold that second wife of Titru Singh did not have a valid status of wife.

9. Even otherwise, the jurisdiction of this Court to interfere with the findings of fact under Section 100 of the Code of Civil Procedure is well defined by catena of decisions of the Supreme Court. This Court cannot interfere with

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the finding of fact until or unless the same is perverse or contrary to material on record. [See: Narayan Rajendran and Anr. v. Lekshmy Sarojini and Others, (2009) 5 SCC 264, Hafazat Hussain v. Abdul Majeed and Others, (2001) 7 SCC 189, Union of India v. Ibrahim Uddin and Antoher, (2012) 8 SCC 148, D.R. Rathna Murthy v. Ramappa, (2011) 1 SCC 158 Vishwanath Agrawal v. Sarla Vishnath Agrawal, (2012) 7 SCC 288, Vanchala Bai Raghunath Ithape v. Shankar Rao Babu Rao Bhilare, (2013) 7 SCC 173 and Laxmidevamma and Others v. Ranganath and Others, (2015) 4 SCC 264] The concurrent findings of fact recorded by the courts below are based on meticulous appreciation of evidence on record which by no stretch of imagination can be said either to be perverse or based on no evidence.

10. In the result, the appeal is dismissed at admission stage since no substantial question of law arise.

(AVANINDRA KUMAR SINGH) JUDGE VKV/-

VINAY VERMA DN: c=IN, o=HIGH COURT OF MADHYA PRADESH, ou=PRINCIPAL BENCH JABALPUR, KUMAR 2.5.4.20=13db8761eb70b132ff4027 3d1cd6cbb7943345d9b89a3be51b 2002de183fc51, postalCode=482001, st=Madhya Pradesh, VERMA

serialNumber=24244EED4BE5112B 2864A7944D29B2B81856B49A7068
9CB14D4EBD1688FF149, cn=VINAY KUMAR VERMA Date: 2024.04.20 20:53:18 +05'30'